

State vs Mukesh Solanki Ors on 9 December, 2024

IN THE COURT OF MS SHILPI SINGH, ERSTWHILE
JUDICIAL MAGISTRATE-02 (SOUTH DISTRICT), SAKET
COURTS COMPLEX, NEW DELHI (RESERVED
JUDGMENT)

Date of Judgment: 09.12.2024

FIR No. 1473/2006

U/s 420/471/474/120B and 506 (II) IPC

PS: Malviya Nagar

Complainant

Smt Rattan Kaur, represented
through State of NCT of Delhi

Represented by

Sh. Anand Kumar Goyal, Ld.
APP for State

Accused

1. Mukesh Solanki s/o Sh. Mange Ram.
2. Anil Katyal s/o Sh. KL Katyal

Represented by

Sh. Gopal Sharma, Ld. Counsel
for accused no.1.

Date of Offence

2004

Date of FIR

22.12.2006

Date of Charge-sheet

01.07.2010

Date of Framing of Charges

28.11.2017

Date of commencement of evidence

17.07.2018

Date on which judgment is reserved

09.10.2024

Date of the Judgment

09.12.2024

Date of the Sentencing Order, if any

NA-Acquitted

FIR No. 1473/2006

State vs Mukesh Solanki & Ors

Page 1 of 3

BRIEF FACTS:

1. Succinctly, the case of the prosecution is that the complainant allegedly own a land measuring 4,565 Sq yards at Village Adampur, District Gurgaon, Haryana (hereinafter called the property in question) and the land of accused no.1 is situated adjacent to the land of complainant. It is alleged that in the year 2004, accused no.1 approached the complainant and informed her that the land at Adampur was being acquired by the government and asked her to sign on some papers in order to save the property in question from acquisition. As per the complainant, she believed accused no.1 as he was also her neighbor and she felt that he will not deceive her and after sometime, in the same year, the accused came to her with blank papers and asked the complainant to sign on them. The complainant alleges that she refused to sign initially but the accused no.1 said that he is her nephew and he will not commit any fraud with her. She further said that the accused no.1 informed her that the papers could be only filled by the Clerk of HUDA and he wasn't aware of the content and therefore he got blank papers to be signed by the complainant and he also asked her to provide two passport photo and copy of her ration card. On representation of the accused no.1, the complainant believed him and signed on blank papers and gave her ration card and two photos. She however said that after getting the documents, the accused did not come to her house for a long time and whenever she would contact him, he assured her that the work is in progress and would ask for more time. As per the complainant, she became suspicious and went with One Rafi Malik, who was a resident of Malviya Nagar to office of HUDA and on inquiry, she got to know that the documents obtained from her by accused no.1 were never deposited at the office of HUDA and the accused used these documents to execute a power of attorney (hereinafter called POA) and the misused the POA to sell the property in question to a company and the payment was taken through cheque and deposited in an account registered in the name of complainant bearing number 01190010659 at State Bank of Bikaner and Jaipur, C-14, Digitally signed by SHILPI SHILPI SINGH SINGH Date:

2024.12.09 16:39:15 +0530 Janakpuri, New Delhi (hereinafter called the forged bank account), which was allegedly encashed by accused no.1. The complainant said that the said account was not opened by her. The complainant submits that when she questioned accused no.1 about the same, he said that it was her fault to sign on blank papers and informed her that he has already spent the amount and threatened to kill her if she persisted on returning the money. On the complaint of the complainant, her application u/s 156 (3) CrPC was allowed and the present FIR was registered and after investigation, chargesheet was filed against the accused persons and Anil Kumar Bansal u/s 420/506/34/120B IPC on 01.07.2010.

2. Cognizance was taken on 16.02.2012 against all the accused persons and after hearing the arguments on charge, accused Anil Kumar Bansal was discharged from this case and accused no.1 was charged with offence u/s 420/471/474/120B/506 (II) IPC and accused no.3 was charged with offence u/s 120B IPC, to which they pleaded not guilty and claimed Trial.

THE TRIAL PROCEEDINGS:

3. To bring home the guilt of the accused, the prosecution examined 13 witnesses.

The details of the witnesses examined are:

RANK	NAME	NATURE OF EVIDENCE
PW1	Sh. Narender Singh	Formal witness
PW2	Sh. Rafi Malik	Formal witness
PW3	Sh. Bhim Singh Indora	Notary
PW4	Smt Rattan Kaur	Complainant
PW5	Sh Vinod Kumar	Patwari
PW6	Sh Sukhbir Singh	Purchaser of property

PW6A	Inspector Praveen Kumar	2nd IO
PW7	Deepak Raj Handa	Expert Witness- CFSL
PW8	Retd SI Brahmpakash	1st IO
PW9	AK Gupta	Chief Manager, State Bank of Bikaner & Jaipur
PW10	Devender Kumar	Retired Cashier, State Bank of Bikaner & Jaipur
PW11	ACP Satender	3rd IO
PW12	Sh Vijay Pal	AR of M/s North Star
PW13	Inspector OP Sinha	4th IO

4. PW-1 is the husband of the complainant who said that after the death of father of complainant, she became the owner of property in question. He said that he obtained the papers of the property from Tehsil office at District Gurgaon and gave it to the IO which was seized by him through seizure memo Ex PW-1/A.

5. During his cross examination by accused no.1, it was extracted that the property in question was the one third share, which the complainant received from her mother but PW-1 did not know the exact date or if any written document was executed for transfer of this share in the favor of complainant and no such document was executed in front of him. He admitted that his working hours were 8:00 am to 6:30 pm. He also changed his version in cross and said that he never went to the office of any Tehsildar and did not hand over any document to the police. He also denied giving any statement u/s 161 CrPC to the police and when he was confronted with his statement, he said that the same was not his statement. The statement was exhibited as Ex PW-1/D1. Accused no.3 did not cross examine the witness.

6. PW-2 is one of the witness of PW-4/complainant who said that he accompanied the IO on 09.03.2007 to the Registry office at Gurgaon where PW-1 and PW-4 Digitally signed by SHILPI SHILPI SINGH SINGH Date:

2024.12.09 16:39:32 +0530 were present and the patwari handed documents of property in question , which were seized by the IO in his presence. The seizure memo was exhibited as Ex PW-1/D. During his cross examination by accused no.1, he said that he had no knowledge about the facts of this case or content of document handed over by Patwari to IO. He was not cross examined by accused no.2.

7. PW-3 is a formal witness who said that on 11.02.2004, a Memorandum of Understanding was executed between Rattan Kaur and M/s North Star Apartment Pvt Ltd and he notarized the same by stamping and signing on the document. The document was exhibited as Ex PW-3/A. Nothing material was extracted in his cross examination by accused no.1 and accused no.3 did not cross examine him.

8. PW-4 is the complainant who said that in the year 2004, accused no.1, who is also her nephew asked her to sell the property in question and she permitted him to sell the same, which was eventually sold to one Sukhbir/ PW-6 for a sum of Rs. 75,00,000/-. She further said that a cheque was issued in her favor by a company, the name which she could not remember. As per PW-4, accused no.1 gave her a cheque of Rs. 5,00,000/-, which she deposited in her bank account and informed her that the balance amount will be given in 6 months. She said that after 1-2 months, accused no.1 told her that he will give the balance payment with interest upon it and for two months he gave interest on principal amount but later stopped the payment of interest. PW-4 alleged that accused no.1 gave her two cheques which she deposited at Sohrashtra Bank but they got dishonored for funds insufficient. She correctly identified accused no.1. She was cross examined by State as well but she could not remember the amount for which these cheques were issued. PW-4 could not remember if accused no.1 took her signatures on blank papers but she said that she never handed over her photos to him and accused no.1 only asked for the copy of her ration card with original ration card. She also said that she never went to HUDA office and she never saw the property in question and did not give any complaint to police. She could not remember if Digitally signed by SHILPI SHILPI SINGH SINGH Date:

2024.12.09 16:39:41 +0530 she filed any complaint before the Court but she admitted her signatures on her complaint u/s 156 (3) and the same was exhibited as Ex PW-4/A. She could not even remember if she signed on all the pages of Ex PW-4/A, who wrote it and if date was mentioned on the same. She produced original GPA dated 16.03.1999 and agreement to sell dated 16.03.1999 executed between her and Rijpal Saini, including her signatures on all the pages at point A and the documents were exhibited as Ex PW-4/B (OSR-3 pages) and PW-4/C (OSR- 4 pages). PW-4 said that accused no.1 informed her that HUDA is acquiring property in question but she denied the suggestion that accused no.1 informed her that her documents qua property in question are to be deposited at HUDA. She could not remember if accused no.1 asked her to sign on blank papers. PW-4 changed her

statement in cross examination by state and said that when accused no.1 did not give her money for property in question, she went to the office of HUDA with one Rafi Malki to inquire. PW-4 also said that accused no.1 got the POA in his name without her consent and sold the property in question without her permission and opened the alleged forged bank account himself as she never went to the said bank to open an account. PW-4 could not remember if accused no.1 threatened to kill her and she could not admit or deny this suggestion when given by the State. PW-4 alleged that accused no.1 misappropriated the money of property in question and gave her only Rs. 5 lacs. She was also confronted with another complaint, which was exhibited as Ex PW-4/D1 but she could not remember if this complaint was given by her to the police. She said that she cant read the content of Ex PW-4/D1 due to her old age. She further said that when the accused no.1 came to her house, none of her family members were there and accused along with one of his associate Sanjay was present. She also said that she did not inform about the transaction between her and accused no.1 to her family at that time and informed them later. She said that she used to call accused no.1 from PCO. She was questioned about her family members if anyone was cited as a witness in this case to which she answered that one of her neighbor Ravi is the witness and her daughter Babli was residing 2-3 kms from the property in Digitally signed by SHILPI SHILPI SINGH SINGH Date:

2024.12.09 16:39:50 +0530 question but none of her family members were interrogated by the police or made witness. Later she said that her daughter Babli was also a witness and she was residing with her at the time of offence. She was admitted that Ravi was known to her for many years as he was her neighbor. PW-1 clarified that she could not read hindi or english and she said that Ex PW-4/D was written at the police station possibly by the police official. She could not remember how many complaints she gave at the police station, who accompanied her at the time of transaction or the exact cheated amount but as per her, it was Rs.30,00,000/-. She could also not say who all were made witness in this case. She was confronted with the list of witness filed and the proceedings on her application u/s 156 (3) CrPC, she admitted her signature on the document i.e Ex PW-4/D1. She then said that accused no.1 and his family were known to her and they are still in touch as they all her are relatives but later said that she does not know accused no.1 or his relatives. PW-4 denied the suggestions put to her. Accused no.3 did not cross examine the witness.

9. PW-5 is the Patwari from Deputy Commissioner office, Gurgaon, the record of land for property in question were kept at his office. He said that as per the records, PW-4 was the owner of 1/3rd share of property. He furnished a report which was exhibited as Ex PW-5/A. During his cross examination by accused no.1, PW-5 admitted that he had no personal knowledge of the case. Accused no.3 did not cross examine the witness.

10. PW-6 is the purchaser of property in question and he said that in the year 2006 & 2007, he was director of SS Group Housing Society and the property in question was found to be registered in the

name of PW-4 and Mange Ram and after discussing with PW-4 and finalizing the rate, he purchased the same. As per PW-6, PW-4 prepared her POA in the name of North Star Pvt Ltd and he paid the entire amount for purchase of property in question by way of cash of Rs. 20,000/- and two cheques bearing number 114210 dated 12.01.2004 for a sum of Rs.

3,36,250/- and 53142 dated 29.01.2004 for a sum of Rs. 1,78,125/-, issued in the name of PW-4. PW-6 said that after payment to PW-4, agreement was executed between his company and M/s North Star Pvt Ltd and all the documents pertaining to sale were signed by PW-4 at Gurgaon and he also gave her two additional cheques bearing no. 19323 and 19324, both dated 29.10.2004 for a sum of Rs. 15,14,125/- and 15,14,000/- respectively. As per PW-6, he never went to the house of PW-4 or sent any of his employee to get signatures of PW-4 on any document and as per him, PW-4 signed the documents herself at Gurgaon. He also said that accused no.1 never gave any document on behalf of PW-4 to him. He further said that at the time of execution of documents, PW-4 was present physically with her family and accused no.1.

11. During his cross examination by accused no.1, he admitted that each and every transaction for property in question was done between him and PW-4 only. He explained that since 1991, he was in the business of Real estate and he was purchasing properties around the area where property in question was situated. He however could not remember who met him for the first time on behalf of PW-4 and who all were present at the time of execution of MOU and if he gave these documents to the IO or the documents sought by the IO. He also did not know when he was served with a notice by the IO and when he gave his statement to the IO and when he was confronted with his statement u/s 161 CrPC, he could not remember if it was his statement. The document was exhibited as Ex PW-6/A. He however denied the suggestion of deposing at the instance of complainant or falsely implicating the accused and the other suggestions as well. The witness was not cross examined by accused no.3.

12. PW-6A is the second IO of the case who submitted that during investigation, he served notice upon State bank of Bikaner and Jaipur and to the accused. He said that the accused did not join investigation but the bank replied and sent the account opening form of PW-4 with remaining details and the reply and Digitally signed by SHILPI SHILPI SINGH SINGH Date:

2024.12.09 16:40:08 +0530 documents were exhibited as Ex PW-6/A and Marx X (colly- 2 to 23 pages). During his cross examination by accused no.1, it was extracted that PW-6A did not conduct any investigation from any witness or from the

concerned SDM/ Sub Registrar and explained that since he was the IO for only 100 days, he only sought reply from the bank. He denied the suggestions put to him. He was not cross examined by accused no.3.

13. PW-7 is the expert witness who was called to prove the CFSL report of comparison of signature of PW-4 with questioned signatures. The witness said that during his tenure, he examined 4.5 lacs exhibits in more than 4000 cases. He said that the present case bearing number 164/SHO dated 23.04.2009 was sent by SHO, PS: Malviya Nagar, addressed to Director CFSL and the same was forwarded by the Director to his section and it was marked to him. The witness said that he examined questioned signatures i.e Q1 to Q12 with sample signatures of PW-4 i.e S1 to S344 and the disputed signatures were marked as Q1, Q1A, Q1B, Q2 to Q12 and the sample signatures for these were marked as 1/A, 1/B, 2/A, 2/B, 3/A and 3/B, and it was found that the person who gave specimen signature did not sign on the questioned documents. The detailed report bearing no. CFSL-2009/D-0384, running into 3 pages was exhibited as Ex PW-7/B. The forwarding letter of concerned Director through which the report was forwarded was exhibited as Ex PW-7/C.

14. During his cross examination by accused no.1, it was extracted that sample signatures of PW-4 were only sent for examination. He said that he did not maintain any diary number of each document examined by him and he said that examination was done with mechanical and manual assistance. He admitted that he did not file any video footage of the examination conducted by him and also agreed that there is no circular in department that video proceedings cannot be conducted but explained that no such practice is followed in the department since inception. He denied the suggestions put to him. Accused no.3 did not cross Digitally signed by SHILPI SHILPI SINGH SINGH Date:

2024.12.09 16:40:16 +0530 examine him.

15. PW-8 is the first IO of the case who said that during the course of investigation, he went to the house of PW-4, where initially she was not found as her house was locked and later, when she was at home, the PW-8 recorded her statement and asked her to provide requisite documents but PW-4 said that she would provide them in a few days. He said that on 09.03.2007, he along with PW-2 went to the office of PW-5 where PW-1 and 4 were already there and PW-5 gave the papers of property in question to PW-1 in their presence who then gave it to him and he seized it through Ex PW-1/A. He further said that on 26.03.2007, he along with PW-2 went to see the property in question and PW-1 was already there and they saw that flats were constructed on this property by SS Group Housing society and he then met PW-6 and inquired him. As per PW-8, PW-6 informed him that he purchased this land from PW-4 and since his CA was not present at that time, he said that he will provide the documents after sometime. PW-8 said that on 20.04.2007, he contacted PW-6 again and PW-6 called him to B-4/43, SJ Enclave and gave him 6 documents towards the property in question which were seized by him through seizure memo Ex PW-8/A.

16. During his cross examination by accused no.1, PW-8 admitted that in Ex PW-8/A, detail of number of seized documents or detail of attesting officer for point 1, 5 and 6 or date of execution or the cheque number, its date or branch at point 2, 3 and 4 was not mentioned. PW-8 admitted that

during investigation, he did not serve any notice on PW-4 or PW-6 even though he had 30 years of experience of investigation. He also said that female police official was not with her when statement of PW-4 was recorded and copy of the statement was not given to PW-4. For PW-2, he said that he came on his own to assist him and he did not serve any notice upon him and neither he was authorized by PW-1 and 4. As per PW-8, PW-1 asked him to come with PW-2 to the office of PW-5. He further admitted that he did not ask in writing from PW-1, 2 or 4 about the documents Digitally signed by SHILPI SHILPI SINGH SINGH Date:

2024.12.09 16:40:25 +0530 required by him from them for the purpose of investigation and he also admitted that no notice was served on the office where PW-5 worked and no entry was made in the entry register when he went there and he did not even see I card of PW-5, who claimed to be the Patwari and despite that, he made PW-5 a witness. He also agreed that he did not serve any notice on any person during investigation and no independent witness joined when he seized the documents. PW-8 denied the suggestion of colluding with PW-4 and investigating on her instructions and the remaining suggestions as well. Accused no.3 did not cross examine this witness.

17. PW-9 is the witness from State Bank of Bikaner and Jaipur. He said that he received a notice from a police official to furnish detail of alleged forged bank account and he gave the detail of account bearing number 51003312554 of PW-4 along with a reply and supporting documents i.e PW-6/A and Mark X (colly). The witness explained that at the time when the account was opened, the account number was 01190010659 and after implementation of Core Banking System (CBS), the account number was changed to 51003312554. He also said that at the time of filing the reply, he was the branch manager and he identified his seal and signature on the reply and Mark X and therefore, statement of account filed in mark X was exhibited as Ex PW-9/A. As per PW-9, amount of Rs. 15,14,000/- and 15,14,125/- was credited into the account of PW-4. He said that he also gave photocopy of cheque and other receipts to the IO and the same were exhibited as Ex PW-9/B (colly) and requisite certificate towards u/s 65B IEA was exhibited as Ex PW-9/C.

18. During his cross examination by accused no.1, he could not remember if the account holder of the alleged forged account was informed about the details sought by the IO in writing by the bank. He said that no internal inquiry was conducted by the bank towards the alleged forged account and explained that since details of account was only sought by the police, no such inquiry was Digitally signed by SHILPI SHILPI SINGH SINGH Date:

2024.12.09 16:40:34 +0530 required to be conducted. He also said that his statement was never recorded by the police and he could not remember how many documents were actually provided to the police and how PW-6/A was sent to the PW-6A. He admitted that Ex PW-6/A nowhere shows that any crime was conducted by anyone against any person. He denied the suggestion put to him. Accused no.3 did not cross examine him.

19. PW-10 was also working at State Bank of Bikaner and Jaipur and he said that on 21.04.2009, he was at the branch and one police official came and asked for KYC of alleged forged account of PW-4 along with photocopy of 9 cheques issued by PW-4 and photocopy of account opening form of accused no.1. He said that all these documents were handed over to police and seized in his presence by seizure memo Ex PW-10/A. He said that account opening form of PW-4 and the cheques are already exhibited as Ex PW-7/A and Ex 5/A to 5/I and the account opening form of accused no.1 was exhibited as Ex PW-10/B (colly).

20. During his cross examination, PW-10 admitted that PW-4 was never informed about the information sought by the police and no confirmation was taken from her about the alleged offence for giving the details. He further said that he was a junior clerk at the time when he gave the documents but he did not take any confirmation/ permission from his senior official. He also admitted that he has no personal knowledge of Ex PW-10/A handed over to police and he was only asked to sign as a witness. He further said that signature and stamp of the concerned official to whom documents were handed over was never taken to keep a record of delivery in bank records and explained that it was the job of branch manager. He denied the suggestions put to him. Accused no.3 did not cross examine him.

21. PW-11 is the third IO of the case who said that during the course of investigation, he approached State bank of Bikaner and Jaipur and met PW-9 and seized Ex PW-10/A. As per the witness, the documents seized in Ex PW-10/A were account Digitally signed by SHILPI SHILPI SINGH SINGH
Date:

2024.12.09 16:40:47 +0530 opening form of alleged forged bank account of PW-4, 9 Cheques issued by her in original and photocopy of account opening form of accused no.1. he further said that he collected the specimen signature /handwriting of PW-4, accused no.1 and 3 for comparison with questioned signature/handwriting and the sample signature/handwriting was exhibited as Ex 1/A, 1/B, 2/A, 2/B, 3/A and 3/B and forwarded these along with all the documents seized in Ex PW-10/A to CFSL for comparison.

22. During his cross examination by accused no.1, he admitted that he did not go through the status report filed by the previous IO, which was forwarded by SHO wherein it was mentioned that all transactions for the property in question with PW-6 were done by PW-4. The status report of previous IO was exhibited as Ex PW-11/D1. He also admitted that he did not scrutinize the report and investigation done by previous IO's before he began his investigation. He also admitted that while the specimen of accused no.1 was taken, complainant was absent and when sample of complainant was taken, accused no.1 was not present but he explained that he attested the samples himself. He could not remember few of the questions put to him and said that due to lapse of time, he could not recollect. He however denied the suggestions put to him. Accused no.3 did not cross examine him.

23. PW-12 is the person who said that he was authorized by higher officials of SS Group Pvt Ltd to execute an agreement to sale with M/s North Star Pvt Ltd with PW-4. The said agreement is placed

on record and exhibited as Ex A1 to A4 and the witness identified his signature at point A, B, C and D.

24. During his cross examination by accused no.1, he admitted that Ex A1 to A4 is an unregistered document and it does not have his detail or the detail of PW-4 or the independent witnesses and their I cards are not a part of these exhibits. He said that each and every transaction was made verbally with PW-4 and no document Digitally signed by SHILPI SHILPI SINGH SINGH Date:

2024.12.09 16:40:56 +0530 was asked by her to sign before the execution of Ex A1 to A4. He admitted that no confirmation or authority letter is filed to show that he was authorized by M/s North Star to deal for property in question. He denied the suggestions put to him. Accused no.3 did not cross examine him.

25. PW-13 is the fourth IO of the case and he said that he only collected Ex PW-7/B and filed the chargesheet before the Court as the entire investigation was conducted by the previous IO's. During his cross examination by accused no.1, he also admitted that he did not investigation on observation made in Ex PW-11/D1 that PW-4 herself entered into the transaction and signed the papers. He admitted that he did not discuss with first IO on observation made from B to B1 in Ex PW-11/D1 and he could not remember if he collected documents from point C to C1, D to D1 and E to E1, as observed in Ex PW-11/D1 but he said that all the relevant documents were filed by the previous IO's. He denied the suggestions put to him. He was not cross examined by accused no.3.

26. The accused persons admitted the factum of registration of present FIR and accordingly, the document was exhibited as Ex X1 and the witness was dropped.

27. During their statement u/s 313 CrPC, the accused persons denied the allegations made against them and accused no.1 said that the entire transaction was done by PW-4 herself in the presence of her family . He explained the version of PW-6, 9, 10, 11 and the formal witnesses to show that nothing incriminating was brought against him and further said that the IO's did not see the previous investigation conducted wherein, it was clearly observed that the entire transaction was done by PW-4 herself. Accused no.3 on the other hand said that the allegations are not made against and he did not fill the account opening form or met with the customer or verified the document and therefore, he has no role to play in this case.

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2024.12.09 16:43:21 +0530 FINAL ARGUMENTS

28. During final arguments, the Ld. APP said that the case is proved beyond reasonable doubt as PW-4 had faith in him and using this faith, he got her account opened in conspiracy with accused no.3 and misappropriated the amount. He further said that the contradictions in the case of prosecution are minor and they should be seen with the fact that PW-4 is an old woman and minor variations are bound to happen. He further said that accused no.3 opened the account of accused no.1 in the same bank as of PW-4 and his name is also visible in the account opening form of PW-4

and thus, conspiracy is visible. Per contra, Ld. Counsel for accused no.1 said that the involvement of accused no.1 was not taken by the purchaser of the property i.e PW-6 and PW-12 which indicates that he had no role to play in the alleged transaction. He further said that the IO's did not go through the investigation conducted by previous IO's wherein it is clearly shown that accused no.1 was not involved in the alleged offence and the allegations of PW-4 in her statement u/s 161 CrPC were initially made against the accused who is already discharged. He further said that specimen signature of the accused already discharged was never taken and sent for examination and no incriminating evidence cropped up against accused no.1 in the said report. He further said that no internal inquiry was conducted by the bank for the allegation of forgery to show how accused no.1 was involved in it and the investigation and the evidence nowhere suggests the involvement of accused no.1 in this case. Counsel for accused no.3 said that in Ex PW-10/A, accused no.3 is only the account opening ledger keeper and there is no evidence against him to show that the alleged forgery was committed by him in conspiracy with accused no.1 and therefore, benefit of doubt should be given to him.

APPRECIATION OF EVIDENCE

29. I have heard the submissions and perused the record. The charge leveled against accused no.1 is u/s 420/471/474/120 B IPC and accused no.3 is alleged to be in conspiracy with accused no.1. Further, accused no.1 is also alleged to have threatened to kill the complainant. Section 420 IPC provides that whoever cheats and thereby dishonestly induces the person deceived to deliver any property to any person, or to make, alter or destroy, the whole or any part of valuable security, or anything, which is signed or sealed, and which is capable of being converted into a valuable security, shall be liable to be punished for a term which may extend to seven years and shall also be liable to fine. There are, thus, three components of this offence, i.e.

a) deception of a person either by making a false or misleading representation or by dishonest concealment or by any other act or omission;

b) fraudulent or dishonest inducement of that person to either deliver any property or to consent to the retention thereof by any person or to intentionally induce that person so deceived to do or omit

to do anything which he would not do or omit if he were not so deceived; and

c) such act or omission causing or is likely to cause damage or harm to that person in body, mind, reputation or property.

30. Further, Cheating is defined under Section 415 of IPC which reads as follows:-

Whoever, by deceiving any person, fraudulently or dishonestly induces the person so deceived to deliver any property to any person, or to consent that any person shall retain any property, or intentionally induces the person so deceived to do or omit to do anything which he would not do or omit if he were not so deceived, and which act or omission causes or is likely to cause Digitally signed by SHILPI SHILPI SINGH SINGH Date:

2024.12.09 16:43:40 +0530 damage or harm to that person in body, mind, reputation or property, is said to "cheat".

31. Perusal of the aforesaid provisions would shows that the offence of cheating is in two parts. The first is where a person fraudulently or dishonestly deceives another, inducing that person to deliver any property to any person etc. The second part of the offence would be made out if somebody is deceived to do an act which causes damage or harm to that person "in body, mind, or reputation or property is said to have cheated". In order to make out an offence under cheating the intention to cheat or deceive should be right from the beginning. The said principle was reiterated by the Hon'ble Apex Court in the case of Hridaya Ranjan Prasad Verma vs. State of Bihar (2000) 4 SCC 168, wherein it was held:

In determining the question it has to be kept in mind that the distinction between mere breach of contract and the offence of cheating is a fine one. It depends upon the intention of the accused at the time of inducement which may be judged by his subsequent conduct but for this subsequent conduct is not the sole test. Mere breach of contract cannot give rise to criminal prosecution for cheating unless fraudulent or dishonest intention is shown right at the beginning of the transaction, that is the time when the offence is said to have been committed. Therefore it is the intention which is the gist of the offence. To hold a person guilty of cheating it is necessary to show that he had fraudulent or dishonest intention at the time of making the promise. From his mere failure to keep up promise subsequently such a culpable intention right at the beginning, that is, when he made the promise cannot be presumed."

32. Further, Section 471/474 IPC emanates from forgery which is defined under section 463 IPC as: " Whoever makes any false document or false electronic record or part of a document or electronic record, with intent to cause damage or injury, to the public or to any person, or to support any claim or title, or to cause Digitally signed by SHILPI SHILPI SINGH SINGH Date:

2024.12.09 16:43:49 +0530 any person to part with property, or to enter into any express or implied contract, or with intent to commit fraud or that fraud may be committed, commits forgery." Section 464 explains what is making of a false document. It is worded as: "A person is said to make a false document or false electronic record:

a) First: Who dishonestly or fraudulently--

i. makes, signs, seals or executes a document or part of a document; ii. makes or transmits any electronic record or part of any electronic record; iii. affixes any electronic signature on any electronic record; iv. makes any mark denoting the execution of a document or the authenticity of the electronic signature, with the intention of causing it to be believed that such document or part of document, electronic record or electronic signature was made, signed, sealed, executed, transmitted or affixed by or by the authority of a person by whom or by whose authority he knows that it was not made, signed, sealed, executed or affixed; or

b) Secondly:

i. Who without lawful authority, dishonestly or fraudulently, by cancellation or otherwise, alters a document or an electronic record in any material part thereof, after it has been made, executed or affixed with electronic signature either by himself or by any other person, whether such person be living or dead at the time of such alteration; or

c) Thirdly:

i. Who dishonestly or fraudulently causes any person to sign, seal, execute or alter a document or an electronic record or to affix his electronic signature on any electronic record knowing that such person by reason of unsoundness of mind or intoxication cannot, or that by reason of deception practised upon him, he does not know the contents of the document or electronic record or the nature of the alteration.

33. Section 467 of the IPC defines Forgery of valuable security, will, etc. The sections says that Whoever forges a document which purports to be a valuable security or a

will, or an authority to adopt a son, or which purports to give authority to any person to make or transfer any valuable security, or to receive the principal, interest or dividends thereon, or to receive or deliver any money, movable property, or valuable security, or any document purporting to be an acquittance or receipt acknowledging the payment of money, or an acquittance or receipt for the delivery of any movable property or valuable security, shall be punished with imprisonment for life or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

34. Section 471 and 474 of IPC are defined as follows:

a) Section 471: Using as genuine a forged document or electronic record:

Whoever fraudulently or dishonestly use as genuine any document or electronic record which he knows or has reason to believe to be a forged document or electronic record, shall be punished in the same manner as if he had forged such document or electronic record.

b) Section 474. Having possession of document described in section 466 or 467, knowing it to be forged and intending to use it genuine: Whoever has in his possession any document or electronic record, knowing the same to be forged and intending that the same shall fraudulently or dishonestly be used as genuine, shall, if the document or electronic record is one of the description mentioned in section 466 of this Code, be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine; and if the document is one of the description mentioned in section 467, shall be punished with imprisonment for life, or with imprisonment of either description, for a term which may extend to seven years, and shall also be liable to fine.

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35. In light of the essential ingredients of the section, when tested on the evidence put forth by the prosecution, it shall now be seen if the prosecution succeeded in establishing the case beyond reasonable doubt. The present case began with filing of an application u/s 156 (3) CrPC, which was allowed by the Court. Order dated 19.12.2006 passed by the Court directing registration of FIR shows that the complainant was present when the application was filed and heard by the Court.

The said complaint was exhibited as Ex PW-4/A in the examination in chief of complainant, after the said document was confronted to her. She identified her signature on the complaint but she said that she couldn't remember if she gave this complaint. She went on to say that she did not give any complaint to the police, whereas, in Ex PW-4/A, it was alleged that complaint was sent to the

concerned SHO as well as DCP but they did not take any action. She was questioned on this document by the Ld. Counsel for accused no.1 and she was also confronted with list of witness i.e Ex PW-4/D1, attached with the complaint u/s 200 CrPC read with 156 (3) CrPC but she could only identify her signatures on the said document and could not remember if she cited the witness mentioned in it as the witnesses of her case. PW-4 also said that she can't read Hindi or English and could not answer the questions on who wrote the document; the contents of complaint and who accompanied her when the complaint was given, and merely said that she can't remember the same. In fact perusal of her evidence would show that PW-4 could not remember most of the facts relating to Ex PW-4/A and nowhere, she said has established that the contents in Ex PW-4/A were written on the basis of her allegation or she was aware of what was written in it. The said fact was imperative to be established by the prosecution as PW-4 alleged in her complaint and in her cross examination that when the accused misrepresented to her and induced her to enter into the transaction for property in questions, she was alone and some of the associates of accused were with him. The said statement indicates that the knowledge of these allegations was solely with PW-4 and she was the star witness to prove it and therefore, a cogent Digitally signed by SHILPI SHILPI SINGH SINGH
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2024.12.09 16:44:28 +0530 explanation was required from the prosecution to show how this document is admissible. As per Section 106 of Evidence act, the burden of proving fact especially within the knowledge of any person is upon him. In the facts of this case, at the time of alleged conversation held between the accused no.1 and the complainant, she was alone and accused no.1 made her sign blank papers and took her two passport size photos and copy of ration card and misused these documents to create POA and sell the property in question and get the amount deposited in the forged account. Since no other witness of the prosecution is stated to be present when this alleged incident happened, therefore, the burden to prove the same rested solely on PW-4. The fact that she did not prove the contents of Ex PW-4/A to be based on her allegations puts the case of prosecution in serious jeopardy as the burden on proof to establish the same was upon her. To further elucidate, Section 59 of Evidence act says that all facts, except the contents of documents or electronic records, may be proved by oral evidence and section 60 says that Oral evidence must, in all cases whatever, be direct; that is to say:

a) if it refers to a fact which could be seen, it must be the evidence of a witness who says he saw it;

b) if it refers to a fact which could be heard, it must be the evidence of a witness who says he heard.

36. The above two sections clearly lay down that when the fact required to be proved is an allegation which a witness alleges to have seen or heard, it should be direct. Further, section 103 of the act says that the burden of proof as to any particular fact lies on that person who wishes the Court to believe in its existence, unless it is provided by any law that the proof of that fact shall lie on any particular person. Illustration (a) of this section further clarifies the same and suggests that when a fact which

a persons expects the Court to believe, that persons must prove it. The illustration laid down says: If A prosecutes B for theft, and wishes the Court to believe that B admitted the theft to C. A must prove the admission.

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2024.12.09 16:44:49 +0530 Applying this principle to the facts of this case, since PW-4 expected the Court to believe that accused no.1 induced her to sign on the blank papers and misused the documents in the way alleged by her, the burden was upon her to explain on oath how exactly the same was done. As mentioned above, Ex PW-4/A is not proved by PW-4 to be her version, therefore, PW-4 cannot be relied upon to prove the allegations in this document. The remaining evidence left with prosecution is the deposition of other witnesses including the report of expert witness and the investigation conducted by the IO. However, before appreciating the remaining evidence, it is important to see if the remaining allegations of PW-4 made during her deposition have been proved by the prosecution and the veracity of the version of this witness.

37. When the version of PW-4 vis-a-vis her complaint is seen, multiple contradictions are visible. For instance, PW-4 said in Ex PW-4/A that accused no.1 approached her and informed her that the property in question was being acquired by the government and using this statement, he induced her and asked her to sign on some papers in order to save the property in question from acquisition. But during her examination in chief, she changed this statement made in Ex PW-4/A and said that accused no.1 asked her to sell the property in question and she agreed for the same and permitted him to sell it for Rs. 75,00,000/-. The said submission of PW-4 in her deposition makes her allegation of inducement alleged on accused no.1 to sign the papers unconvincing as, her deposition indicates that she was aware of the transaction of sale of property in question and the consideration amount. Further, PW-4 said in her deposition that the property in question was sold to PW-6, which shows that she had the knowledge about the identity of the purchaser, whereas in Ex PW-4/A she said that when she went to office of HUDA and it is then that she got to know that accused no.1 misused the documents he obtained from her and got the POA registered and sold the property in question. It is impossible that on one hand PW-4 would get the information of sale from the office of HUDA and on the Digitally signed by SHILPI SHILPI SINGH SINGH Date:

2024.12.09 16:44:58 +0530 other hand she would have the knowledge of identity of the seller and the consideration amount. Adding on to this, PW-4 said in her cross examination by state that she decided to go to the office of HUDA with PW-2 as the accused failed to handover the consideration amount but, in Ex PW-4/A, she said that she went to HUDA office as the accused wasn't giving any clear answer if he could save the property in question from acquisition after allegedly obtaining blank signed pages from her. In fact, in her cross examination, PW-4 could not remember if she signed on blank papers and simply said that accused no.1 only took the copy of her ration card along with the original ration card and not her photographs and or signed blank papers. The charge of section 420/471/474 IPC against accused no.1 is

based on the allegation that he misused the blank signed documents of the complainant along with her photos and ration card and sold the property in question and got the proceeds transferred in the forged account of complainant but, the submission of PW-4 that she never gave any signed blank paper or photos to accused no.1 seriously affects the case of prosecution as the knowledge of this fact was only with PW-4 but, in view of the contradictions in her version, coupled with the fact that she was aware of the sale of property in question along with the identity of the purchaser and the amount of sale, it is hard to believe that she had no idea about the sale of property in question.

38. Next, if the deposition of PW-2 is seen, he only said that he went to the registry office with PW-8 and Ex PW-1/D was handed over to him by the Patwari in his presence, while PW-1 and 4 were there. The witness further clarified that he had no idea about the facts of the case or contents of Ex PW-1/D. The said statement of PW-2 again puts a question on the veracity of the version of PW-4 as in Ex PW-4/A, she said that PW-2 accompanied her to office of HUDA when she had suspicion over the accused, however, non corroboration of this statement by PW-2 questions the relevancy of this witness for the case of prosecution. If the entire case is seen, PW-2 came into the picture after registration of FIR when he was inquired by PW-8. When PW-8 was questioned about the role of PW-2, he Digitally signed by SHILPI SHILPI SINGH SINGH Date:

2024.12.09 16:45:35 +0530 said that PW-1 asked him to come to Patwari's office with PW-2. The said submission is not just strange but also leads this Court to question the manner of investigation conducted in this case as an IO, who is supposed to fairly investigate a case and bring out true facts in front of the Court was working on directions of a witness. The anomaly doesn't end here as PW-8 went on to admit that he never served any notice on PW-1,2 and 3 before inquiring them and did not make record of any entry at the Patwari's office, when he went to seize Ex PW-1/D. he also admitted that he did not check the I-card of Patwari. Non compliance of settled procedures for investigation by PW-8 including the fact that PW-1 denied Ex PW-1/D1 i.e his statement u/s 161 CRPC to be his version and because in statement of PW-2 recorded u/s 161 CrPC, he never said that he accompanied PW-4 to office of HUDA, as alleged in Ex PW-4/A, raises serious doubts in the case of prosecution. In fact, the requirement of adding PW-2 as witness has not been explained by the prosecution at all and he seems to be a random person who allegedly accompanied the IO during investigation on the instructions of PW-1.

39. It is alleged by the prosecution that accused no.1 opened the forged bank account, without the consent of PW-4, however, the prosecution has failed to give any clarity how the signatures on PW-7/A are sought to be proved as forged. PW-4 failed to prove the allegation of handing over blank signed documents and her photographs to accused no.1 and merely alleged that her ration card, with one copy was taken by accused no.1. Perusal of Ex PW-7/A would show that copy of ration card was filed along with this document and it has stamp of bank at point H, however, on the first page, photo of PW-4 is also affixed. PW-4 or any other witness of prosecution has not explained how the photo of PW-4 reached in the hands of accused no.1 when as per her, she never gave her photos to accused

no.1. Also, when these documents were subjected to expert examination with CFSL, PW-7 said in his deposition that as Ex PW-7/B, questioned signatures from point 1 to 12 of PW-4, when compared with sample signature of PW-4 from S.no.1 to Digitally signed by SHILPI SHILPI SINGH SINGH Date:

2024.12.09 16:45:43 +0530 132, did not match. The said statement would mean that signature on Ex PW-7/A were not of PW-4, however, this alone cannot be a ground to presume that the signatures were done by accused no.1 or accused no.3. Sample signature of accused no.1 and 3 were also taken but no opinion could be expressed if the questioned signature of PW-4 were done by them and therefore, a presumption cannot be raised for an essential ingredient which is supposed to be proved by the prosecution beyond reasonable doubt, only because signature of PW-4 did not match with the questioned signature. It is also worth mentioning that as per the version of PW-4, she said that she never opened this account. This would mean that the other details in Ex PW-7/A were also not have. Further, in Ex PW-7/A, the column for educational qualification of PW-4 is selected upto HSC, however, PW-4 explained during her deposition that she can't read or write. The said fact shows that there is a possibility that details in Ex PW-7/A were either filled by some other person or incorrectly filled at the instructions of PW-4. In any case, the role of accused persons qua the same could have been established if their sample handwriting was taken along with their admitted signatures/ handwriting of contemporaneous period. None of the IO's have explained what prevented them from taking sample handwriting of accused persons and sending it for comparison, despite seizing the account opening form of accused no.1 i.e Ex PW-10/B, which has handwriting of accused no.1. Moreover, no investigation has been conducted by the IO's to show if accused no.1 ever went to meet accused no.3 on the date when account opening form was signed as, no bank witness who worked with accused no.3 has been inquired. It is also not explained by the prosecution how bank account could have been opened only with the ration card of PW-4 and to whom the cheque book from which Q1 to Q11 was obtained, was handed over? Investigation on the recipient of cheque book of alleged forged account was crucial in this case as it could have also shown that PW-4 was not accessing this account through the questioned cheques and her version has merit to it.

40. Further, the IO's were also required to investigate whether KYC in Ex PW-7/A was conducted or not. As per the RBI guidelines, KYC (know your customer) is to be done when an account is opened and this policy was introduced in the year 2002. Ex PW-7/A bears the date of November 2004 and therefore, when the alleged forged account was opened, KYC was required to be done. However, whether the said guideline was followed and if accused no.3 was the one who was supposed to complete the KYC, was a fact required to be investigated into but if cross examination of PW-9 is seen, it only reflects how poorly this case has been investigated. PW-9 did not know if the account holder was informed when the police asked for the detail and he said that since account statement was sought by the police, internal inquiry was not conducted. The effect of this statement is that the investigating agency did not feel the need to inform the bank about the allegations made against one of its employee and they had no interest to ascertain if accused no.3 was actually involved in getting the account opened in the absence of PW-4. The concerned bank would have been in a position to examine the documents and the employees who could have been in the knowledge of any relevant fact, but neither the bank was asked to conduct the inquiry nor the IO felt the need of doing it himself during investigation. Version of PW-9 and PW-10 is only limited to providing the documents sought by the IO and the important bank witnesses, like the branch manager during the period etc, who could have the knowledge of the alleged account, was never examined. What seems to be illogical in this path of investigation is that when PW-4 alleged that she never opened Ex PW-7/A, how would her account statement or the questioned cheques prove this fact as these documents are only an account of transactions made from this account but without proving who got this account opened and who was operating it, these statements have no use for the case of prosecution.

41. Moving on to the remaining facts presented by the prosecution, PW-4 alleged in her deposition given in Court that she permitted accused no.1 to sell the property in question to PW-6 for a sum of Rs. 75,00,000/- but after sale, accused no.1 gave Digitally signed by SHILPI SHILPI SINGH SINGH Date:

2024.12.09 16:46:13 +0530 her only Rs. 5,00,000/- and agreed to pay interest on the remaining amount. As per PW-4, interest was given for two months but eventually, the accused stopped the payment and the cheques given to her by him got bounced and he did not return the principal amount as well. The said allegation of PW-4 was brought for the first time during her deposition and she did not even explain why accused no.1 decided to pay interest on the remaining amount as she has nowhere said that principal amount was permitted by her to be kept with him. Also, the version of PW-6 and PW-12 contradicts the version of PW-4 as, PW-6 and 12 said that the entire transaction for the property in question was done with PW-4 directly at Gurgaon and she signed on all the papers there, in the presence of her family. They also clarified that no person, including accused no.1 was ever sent to the house of PW-4 to take signature on any document and PW-4 was not asked to sign on any document before execution of Ex A1 to A4. PW-6 further said that the discussion for

sale of property in question and fixation of rate of sale was directly done with PW-4 and she herself executed the POA in favor of M/s North Star and entire payment was made to her in cash as well as cheques. The said averment of PW-6 and PW-12 brings the case of the prosecution on an edge and brings the allegation against accused no.1 of obtaining signatures on blank papers and misusing them to a rock bottom. Further, the allegation of PW-4 that accused no.1 initially gave her Rs. 5,00,000/- is directly contradicted with the statement of PW-6 as he never said that he gave an initial payment of Rs. 5,00,000/- or that total sale consideration was of Rs. 75,00,000/-.

42. The deposition of other witnesses of the prosecution i.e PW-1 and PW-2 is also of no relevance on these points as they themselves said that they were not a party to the transaction. Further, deposition of PW-3 only shows that PW-3 notarized MOU between complainant and M/s North star but the prosecution never examined the witness to show if complainant was the one who physically came when the document was notarized. The record of the notary was never called by the prosecution to show that PW-4 did not sign on it or that the document was Digitally signed by SHILPI SHILPI SINGH SINGH Date:

2024.12.09 16:46:22 +0530 executed in her absence. Without this record, the deposition of PW-3 is also of no assistance. As far PW-5 is concerned, he was called to prove that 1/3rd share of property in question was in the name of the complainant, however, this statement is also of no assistance as there is no dispute in the present case that PW-4 was not the owner of property in question. The shoddy investigation in this case qua the role of first IO for functioning on the directions of PW-1; the statement of PW-1 and PW-6 that Ex PW-1/D1 and Ex PW-6/A were not their versions; absence of explanation regarding relevancy of PW-2 in this case; non service of notice on PW-4 and PW-6, who were residing outside the jurisdiction in which the IO could have exercise his power; absence of investigation from the notary regarding presence of PW-4 during notarization of Ex PW-3/A and ambiguity in the relevant fact of the party to the transaction for sale of property in question i.e whether PW-6 and PW-12 entered into the transaction directly with PW-4 or if accused no.1 was involved, are enough loopholes to destroy the case of the prosecution.

43. Now as far offence under section 120B IPC is concerned, sine qua non is existence of an agreement to commit the offence. The said agreement must be proved through direct or circumstantial evidence as was held by the Hon'ble Supreme Court of India in the decision of State of Kerala v. P. Sugathan (2000) 8 SCC 203: "12. ...As in all other criminal offences, the prosecution has to discharge its onus of proving the case against the accused beyond reasonable doubt. ...A few bits here and a few bits there on which the prosecution relies cannot be held to be adequate for connecting the accused with the commission of the crime of criminal conspiracy. 13. ...The most important ingredient of the offence being the agreement between two or more

persons to do an illegal act. In a case where criminal conspiracy is alleged, the court must inquire whether the two persons are independently pursuing the same end or they have come together to pursue the unlawful object. The former does not render them conspirators but the latter does. For the offence of conspiracy some kind of physical manifestation Digitally signed by SHILPI SHILPI SINGH SINGH Date:

2024.12.09 16:46:31 +0530 of agreement is required to be established. The express agreement need not be proved. The evidence as to the transmission of thoughts sharing the unlawful act is not sufficient..."

44. The above ratio shows that charge of conspiracy alleged by the prosecution against the accused must evidence explicit acts or conduct on his part, manifesting conscious and apparent concurrence of a common intention. When this principle is applied to this case and the same is seen in light of the material contradictions noticed in the version of complainant and the deposition of PW-6 and 12, coupled with faulty investigation, the allegation of conspiracy against can only stand if the agreement of conspiracy between accused no.1 and 3 is proved.

The role of accused no.3 came into picture when in Ex PW-7/A, he was found to be the person who opened the alleged forged account. It has been explained above that due to absence of evidence, the prosecution has failed to prove the role of accused no.1 for forging Ex PW-7/A and no investigation is conducted towards the involvement of accused no.3 in the alleged forgery, therefore, in such a case, charge u/s 120B IPC cannot stand as none of the circumstances which lead to the alleged forgery have been proved. The said principle was laid down long back in the judgment of In State (NCT of Delhi) v. Navjot Sandhu, which was also relied upon by Hon'ble Supreme Court of India in Ram Sharan Chaturvedi vs State of Madhya Pradesh, CA No. 1066 of 2010, wherein it was held: "101. One more principle which deserves notice is that the cumulative effect of the proved circumstances should be taken into account in determining the guilt of the accused rather than adopting an isolated approach to each of the circumstances. Of course, each one of the circumstances should be proved beyond reasonable doubt. Lastly, in regard to the appreciation of evidence relating to the conspiracy, the Court must take care to see that the acts or conduct of the parties must be conscious and clear enough to infer their concurrence as to the common design and its execution."

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45. Now because the allegation of signing the alleged blank papers by PW-4 and their eventual misuse has not been proved, it cannot be said that PW-4 was induced by the accused no.1 and cheated or that accused no.1 forged the POA or Ex PW-7/A and therefore, accused Mukesh Solanki s/o Mange Ram Solanki stands acquitted from offence u/s 420/471/474 IPC. It is also apt to mention the judgement passed by Hon'ble Supreme Court of India in Topandas vs The State Of Bombay, 1956 AIR 33,

wherein it was held: "Where, therefore, three persons were charged with having entered into a conspiracy, and two of them were acquitted, the third person could not be convicted of conspiracy whether the conviction be upon the verdict of a jury or upon his own confession. The position in law is, therefore, clear that on the charge as it was framed against the accused Nos. 1, 2 3 and 4 in this case, the accused No. 1 could not be convicted of the offence under section 120-B of the Indian Penal Code when his alleged co-conspirators accused 2, 3 and 4 were acquitted of that offence."

46. A bare perusal of the above judgment shows that for charge u/s 120B IPC to stand against accused no.3, agreement of conspiracy between him and accused no.1 should have been proved but in the absence of the same and in light of acquittal of accused no.1, charge against accused no.3 cannot stand and therefore, accused Anil Katyal s/o KL Katyla stands acquitted from offence u/s 120 B IPC.

47. Lastly, coming to allegation u/s 506 (II) IPC, it is to be first understood what are the essential elements of this section. Section 506 says: "Whoever commits the offence of criminal intimidation shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both, and section 506 (II) says, If threat be to cause death or grievous hurt, etc: and if the threat be to cause death or grievous hurt, or to cause the destruction of any property by fire, or to cause an offence punishable with death or imprisonment for life, or with imprisonment for a term which may extend to seven years, or to impute unchastity to a woman, shall be punished with imprisonment of either Digitally signed by SHILPI SHILPI SINGH SINGH Date:

2024.12.09 16:46:49 +0530 description for a term which may extend to seven years, or with fine, or with both."

48. The above definition of the section would show that if the intimidation caused is of causing death or grievous hurt, part II of the section would be attracted. It has been consistently held by the Hon'ble Apex Court and also by various High Courts that before an offence under this section is made out, it must be established that the accused had an intention to cause an alarm to the complainant.

In order to attract the ingredients of Section 506 I.P.C., the intention of the accused must be to cause alarm to the victim. Mere expression of words without any intention to cause alarm would not suffice. Mere vague and bald allegations that the accused threatened the victim with dire consequences is not sufficient to attract the provisions under Section 506 I.P.C. The threat should be a real one and not just a mere word when the person uttering does not exactly mean what he says and also when the person against whom the threat is launched, does not feel threatened actually. It has been also observed by the Hon'ble Supreme Court in the matter of Manik Taneja and another vs. State of Karnataka and another 2015 (7) SCC 42:

"A reading of the definition of "Criminal intimidation" would indicate that there must be an act of threatening to another person, of causing an injury to the person, reputation, or property of the person threatened, or to the person in whom the threatened person is interested and the threat must be with the intent to cause alarm to the person threatened or it must be to do any act which he is not legally bound to do or omit to do an act which he is legally entitled to do....In the instant case, the allegation is that the appellants have abused the complainant and obstructed the second respondent from discharging his public duties and spoiled the integrity of the second respondent. It is the intention of the accused that has to be considered in deciding as to whether what he has stated comes within the meaning of Digitally signed by SHILPI SHILPI SINGH SINGH Date:

2024.12.09 16:46:58 +0530 "Criminal intimidation". The threat must be with intention to cause alarm to the complainant to cause that person to do or omit to do any work. Mere expression of any words without any intention to cause alarm would not be sufficient to bring in the application of this section. But material has to be placed on record to show that the intention is to cause alarm to the complainant. From the facts and circumstances of the case, it appears that there was no intention on the part of the appellants to cause alarm in the minds of the second respondent causing obstruction in discharge of his duty."

49. The above ratio and the interpretation of the section would show that there are three ingredients to attract Section 506 IPC:

- a) Firstly, there must be an act of threatening another person.
- b) Secondly, of causing injury to the person's reputation; or property of the persons threatened or to the person in whom the "threatened person is interested and,
- c) Thirdly, the threat must be with the intent to cause alarm to the persons threatened or it must be to do any act, which is not legally bound to do or omit to do an act, which he is legally entitled to do.

50. In the facts of this case, the section was charged on accused no.1 on the basis of allegation made by PW-4 in Ex PW-4/A. It has been discussed in detail above that Ex PW-4/A has not been proved by the prosecution to be the version of PW-4. During her deposition, PW-4 never alleged that she was threatened by accused no.1 The Ld. APP gave her a suggestion in cross examination if she was threatened to which she replied that she cannot admit or deny this suggestion. The statement of PW-4 on this aspect shows that she has not explained anywhere in her evidence if accused no.1 threatened her and the manner in which she was threatened and how it caused alarm to her. In the absence of any such allegation, Digitally signed by SHILPI SHILPI SINGH SINGH Date:

2024.12.09 16:47:09 +0530 the essential three ingredients explained above cannot be said to be fulfilled and therefore, accused Mukesh Solanki s/o Mange Ram Solanki

stands acquitted from offence u/s 506(II) IPC.

Announced in the Court on
09.12.2024

(SHILPI SINGH)
Erstwhile JMFC-02, South

Certified that this judgment contains 33 pages and each page bears my signature.

(Shilpi Singh) ACJ/CCJ/ARC (South) Erstwhile JMFC-02, South Saket Court
09.12.2024 Digitally signed by SHILPI SHILPI SINGH SINGH Date:

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